



A COMMUNITY OF CHOICE

PLANNING AND DEVELOPMENT DEPARTMENT

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MEMO

TO: Honorable Mayor Collins and members of the City Council

FROM: Charles W. Bloom, AICP - Director

SUBJECT: Required reporting of park fees, public safety fees, and Core Development Incentivization Program activities for fiscal year 2021

DATE: October 10, 2022

The Unified Development Code and municipal code require reporting of fees and expenses related to park fees (UDC § 4.2.5.5, Park Fees) and public safety fees (UDC § 4.6.3.d, Public Safety Fees) and a summary of activities related to the City of Cheyenne Core Development Incentivization Program Core Fee Waiver (Municipal Code § 15.08.031.E). Not required, but included in this report, is revenue from the Sweetgrass Future Road Improvement fund. These reports are provided upon fiscal year finalization by the City Treasurer.

Full details of all revenues and expenses are attached and individual accounts are summarized below.

Park Fees:

Park Fees collected were \$702,319 and expenditures totaled \$148,711. Details are provided in the attached report. No park fee collected may be used for routine maintenance of public parks or overhead or general fund purposes.

Park Acquisition and Infrastructure (PAI) fees totaled \$141,163. These funds may only be used for park land acquisition and/or base infrastructure supporting the service area. Park Enhancement (PEA) fees totaled \$561,156. These funds may only be used for enhancements to new or existing parks supporting the service area. Service areas vary depending on the open space type being supported and are summarized in Table 4-16 of the Unified Development Code.

The total balance of all PAI accounts one June 30, 2022, was: \$593,422.76 and all PEA accounts was: \$820,926.72.

Public Safety Fees:

Public Safety Fees are collected with development for the purpose of public safety and related infrastructure. Public safety fees do not fund operating or personnel expenses. Public Safety Fees collected were \$719,616. In FY 2022 no expenses were incurred.

Public Safety fees automatically adjust based on the Engineering News- Record's annual 20-city average Construction Cost Index on January 1st of every year. For the first two quarters of FY22 the fee schedule was:

Public Safety Impact Fees (Q1 and Q2)			
Residential Uses	\$836.88	per unit	
Commercial and Service Uses	\$531.92	per 1,000 feet of finished floor area	
Industrial Uses	\$457.18	per 1,000 feet of finished floor area	
Civic and Public Service Uses	\$260.05	per 1,000 feet of finished floor area	
Employment, Agriculture, and any Other Uses	\$882.98	per 1,000 feet of finished floor area	

Upon adjustment, fees increased by approximately 4.1% to the following:

Public Safety Impact Fees (Q3 and Q4)			
Residential Uses	\$871.20	per unit	
Commercial and Service Uses	\$553.73	per 1,000 feet of finished floor area	
Industrial Uses	\$475.92	per 1,000 feet of finished floor area	
Civic and Public Service Uses	\$270.71	per 1,000 feet of finished floor area	
Employment, Agriculture, and any Other Uses	\$919.19	per 1,000 feet of finished floor area	

City of Cheyenne Core Development Incentivization Program Core Fee Waiver:

The Core Development Incentivization Program which was initially established as a development incentive for areas surrounding downtown for fiscal year 2019 and was reestablished on November 27, 2021, through June 30, 2025. The program allows for up to \$100,000 in permit fees to be waived in a fiscal year with a \$5,000 fee reimbursement cap for individual projects within the project area.

Program activity is summarized as follows:

1. A project located at 211 E. 19th Street waiving \$ \$2,747.25 fees for a project with a valuation of \$150,000. The associated permits were: Mechanical, Plumbing, Electrical, and Commercial Building Permit (including roof) (BP-21-03081).
2. A project located at 1722 Carey Avenue waiving \$553.16 fees for a project with a valuation of \$21,000. The associated permit was: Commercial Building Permit (including roof) (BP-21-03081).

Total reimbursements for FY 2022 were \$3,300.41 for the two permits. \$50,000 was budgeted for FY 2023.

Sweetgrass Future Road Improvement Fund:

The Sweetgrass Future Road Improvement fund had a closing balance of \$63,464. This fee was established with the 2018 Sweetgrass PUD Annexation Master Agreement. Per the agreement 90% of revenue shall be spent within or within one quarter mile of the Sweetgrass development. The remaining 10% are not geographically restricted and may be used for transportation matters at the City's direction. These fees may be adjusted annually based upon the Engineering News- Record's annual 20-city average Construction Cost Index. Although this is not required for reporting, it has been included in this update.

City of Cheyenne
Community Facility Fees Fund Annual Report
July 1, 2021 to June 30, 2022

Beginning Fund Balance as of July 1, 2021	\$ 979,347
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REVENUE

Park Acquisition and Infrastructure Fees (see attached breakdown)	141,163
Park Enhancement Fees (see attached breakdown)	561,156
Public Safety Infrastructure Fees (see attached breakdown)	719,616
Sweetgrass Future Road Improvements (5th Filing)	63,464
Investment Revenue (Fair Market Value Adjustment)	(50,915)
TOTAL REVENUE	\$ 1,434,484

EXPENDITURES

Saddle Ridge - construction of new Saddle Ridge Greenway section	28,693
Saddle Ridge - geo-technical work for pickle ball court	4,100
LCCC Multi-Use Path - underpass for pedestrians and bicycles on College	5,009
Disc Golf Tee Pads	2,691
Cheyenne Junior League - concessions ground asphalt	20,700
Cahill Park - sloped concrete around playground area	12,270
Powers Field - synthetic turf replacement	3,500
Sun Valley and Romero Community Parks - playground safety resurfacing project	67,579
Cost Allocation (2.82% of total expenditures to reimburse General Fund for indirect costs)	4,169
TOTAL EXPENDITURES	\$ 148,711

Ending Fund Balance as of June 30, 2022	\$ 2,265,120
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Community Facility Fees Fund Revenue Detail by Subdivision

Park Acquisition and Infrastructure Fees		
Subdivision		Amount
Bison Business Park, 2nd Filing	\$	85,470
Hitching Post Plaza, 1st Filing		2,940
Miller Addition, 5th Filing		1,120
Mustang Ridge, 1st Filing		350
Roberts Place, 1st Filing		770
Saddle Ridge, 16th Filing		2,240
Saddle Ridge, 18th Filing		19,880
South Park Estates, 11th Filing		250
Sweetgrass, 7th Filing		9,651
Sweetgrass, 8th Filing		280
Sweetgrass, 9th Filing		18,213
		\$141,163

Park Enhancement Fees		
Subdivision		Amount
Bison Business Park	\$	284,020
Cahill Park Addition, 5th Filing		1,496
Original City		800
Christensen Park, 1st Filing		2,400
Chukker Ridge, 2nd Filing		2,800
Crossroads Center, 1st Filing		6,400
Dakota Crossing, 1st Filing		800
Early Addition, 2nd Filing		6,400
Gateway South 3rd Filing		1,760
Grand Pre Circle, 2nd Filing		400
Granite Hills Subdivision		400
Harmony Center, 1st Filing		6,400
Harmony Meadow 2nd Filing		2,000
Harmony Valley, 1st Filing		26,800
Miller Cottages, 5th Filing		7,200
Mission Village, 1st Filing		16,000
Original City		800
Plains Industrial Park 2nd Filing		27,610
Rorabaugh Subdivision, 1st Filing		6,820
Saddle Ridge, 1st Filing		800
Saddle Ridge, 13th Filing		16,000
Saddle Ridge, 14th Filing		1,200
Saddle Ridge, 15th Filing		3,200
Scenic Development, 3rd Filing		88,000
Sunlight Addition		1,200

Park Enhancement Fees (continued)

Sweetgrass 1st Filing	\$	400
Sweetgrass 5th Filing		21,320
Terre Fini 3rd Filing		1,430
Teton Business Park, 1st Filing		1,100
The Bluffs, 10th Filing		3,600
The Bluffs, 7th Filing		1,200
Western Hills, 14th Filing		800
Whitney Ranch, 1st Filing		2,800
Whitney Ranch, 3rd Filing		7,200
Whitney Ranch, 5th Filing		9,600
	\$	561,156

Public Safety Infrastructure Fees

Subdivision		Amount
Bison Business Park, 1st Filing	\$	108,108
Cheyenne Progress Center, 1st Filing		47,367
Christensen Park, 1st Filing		5,231
Chukker Ridge, 2nd Filing		4,254
Crossroads Center, 1st Filing		13,950
Dakota Crossing, 1st Filing		1,744
Early Addition, 2nd Filing		13,390
Gateway South, 3rd Filing		29,093
Grand Pre Circle, 2nd Filing		872
Harmony Valley, 1st Filing		72,399
Holmes Corner, 1st Filing		81,177
Johnstown Building, 1st Filing		287
Kornegay Homesites, 3rd Filing		3,264
Miller Cottages, 5th Filing		14,822
Original City		1,709
Saddle Ridge, 13th Filing		27,340
Saddle Ridge, 14th Filing		1,709
Saddle Ridge, 15th Filing		4,219
Scenic Development, 3rd Filing		191,818
Sunlight Addition, 1st Filing		2,581
Sweetgrass, 1st Filing		3,383
Sweetgrass, 5th Filing		37,317
Sweetgrass, 8th Filing		2,584
Terre Fini, 3rd Filing		2,592
Teton Business Park, 1st Filing		5,997
The Bluffs, 10th Filing		9,346
The Bluffs, 7th Filing		2,616
Western Hills, 14th Filing		1,674
Whitney Ranch, 1st Filing		5,231
Whitney Ranch, 3rd Filing		2,616
Whitney Ranch, 5th Filing		20,926
	\$	719,616